

26STCP01347 26STCP01347

County: los-angeles

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Department: 26

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Case Number: 26STCP01347 Hearing Date: August 10, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Unifirst Corporation's Petition to Confirm Arbitration Award is continued to 09/14/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/24/2026, Petitioner is to file a proof of service of the Petition and Notice of New Hearing Date in a manner that complies with the requirements of Code of Civil Procedure section 1290.4. Failure to do so may result in the Petition being denied.

Analysis:

On April 6, 2026, Petitioner Unifirst Corporation ("Petitioner") filed the instant Petition to Confirm Arbitration Award (the "Petition") against Respondent Elite Tires & Auto Care ("Respondent"). No response to the Petition has been filed to date.

Legal Standard

"Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all parties to the arbitration and may name as respondents any other persons bound by the arbitration award." (Code Civ. Proc., § 1285.) "If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.)

A response to a

Petition to Confirm Arbitration Award that seeks to vacate or correct the award must be served and filed no later than 100 days after the date of the service of a signed copy of the award on the respondent. (Code Civ. Proc., § 1288.2.)

Discussion

Service of the Petition and Notice of Hearing

Code of Civil

Procedure, section 1290.4 requires that the petition and notice of hearing be served on Respondent “in the manner provided in the arbitration agreement for the service of such petition and notice” or “[i]f the arbitration agreement does not provide the manner in which such service shall be made . . . [s]ervice within this State shall be made in the manner provided by law for the service of summons in an action.” (Code Civ. Proc., § 1290.4, subds. (a), (b).)

The arbitration agreement does not provide for the manner of service of the petition and notice of hearing, which therefore must be served in the manner of service for a summons. (Pet., Attachment 4(b), p. 2.) Petitioner filed Proof of Service by Substitute Service, attesting that on May 23, 2026, the process server delivered the Petition and Notice of Hearing to “Jane Doe Co-Occupant to Isela Arteaga, Agent” at the home address of 810 W 29th St, Long Beach, California, 90806. (Proof of Service, filed 06/02/26, ¶¶3-5.) Substitute service upon a corporate agent is permitted under Code of Civil Procedure section 415.20, subdivision (a), but service must be made by leaving the documents “in the person’s office,” and only if no physical address is known, at the person’s usual mailing address. (Code Civ. Proc., § 415.20, subd. (a).) The Proof of Service by Substitute Service does not establish that this requirement is met. The 810 W 29th St. address is identified as the “home” address for the agent. (Proof of Service, filed 06/02/26, ¶5.b(2).) This address is not the same as the address used for service of the arbitration award on the Respondent. (See Pet., Attachment 8(c), p. 1.) The Proof of Service does not explain why a physical address is unknown, nor identify any other basis for the Court to find the agent’s home address an appropriate address for service under § 415.20(a). (See Code Civ. Proc., § 417.10(a) (affidavit of service must include “facts showing

that the service was made in accordance with this chapter"). Therefore, the Court cannot find that the requirements of Code of Civil

Procedure section 1290.4 are satisfied.

Service of the Arbitration Award (CCP § 1283.6)

Code of Civil

Procedure section 1283.6 requires that "[t]he neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement." (Code Civ.

Proc., § 1283.6.) This requirement may be satisfied by service by the

arbitrator, or upon proper service of the award with the petition. (See *Murray v. Civil Service Employees Ins. Co.* (1967) 254 Cal.App.2d 796, 799-800.) The

arbitration award was served on the parties on November 10, 2025. (Pet., Attachment 8(c), p. 1.)

Confirmation of the Arbitration Award

An arbitration award

is not directly enforceable until it is confirmed by a court and judgment is entered. (Code Civ. Proc. § 1287.6; *Jones*

v. Kvistad (1971) 19 Cal.App.3d 836, 840.) The court must confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (CCP § 1286; *Valsan*

Partners Limited Partnership v. Calcor Space Facility, Inc. (1994) 25 Cal.App.4th 809, 818.) Code of Civil Procedure, section 1285.4 states a petition under this chapter shall:

a)

Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

b)

Set forth the names of the arbitrators.

c)

Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.

(Code Civ. Proc., § 1285.4.) The Petition complies with these requirements. It sets forth the nature of the arbitration agreement, the name of the arbitrator, and attaches a copy of the arbitration award. (Pet., ¶¶4-6 and Attachment 8(c).) The arbitrator awarded Petitioner \$24,521.47 principal, \$269.83 pre-award interest, and \$7,627.50 pre-award attorney's fees. (Id. at Attachment 8(c), pp. 4-5.) Therefore, the arbitration award is confirmed in favor of Petitioner in that amount.

Attorney's Fees,
Costs and Interest

To the extent Petitioner requests attorney's fees according to proof and costs of \$500.00 (Pet., ¶10e-f), those are permitted on a petition to confirm arbitration award. (Code Civ. Proc., § 1293.2; MBNA America Bank, N.A. v. Gorman (2006) 147 Cal.App.4th.Supp. 1, 7.) Petitioner may file a memorandum of costs pursuant to Cal. Rules of Court Rule 3.1700 and a noticed motion for attorney's fees pursuant to Cal. Rules of Court Rule 3.1702. Also, "a successful party to arbitration is entitled to post-award, pre-judgment interest under Civil Code section 3287, subdivision (a). (Pierotti v. Torian (2000) 81 Cal.App.4th 17, 27.) Petitioner's proposed judgment must include the legal basis and calculation for the interest sought therein.

Conclusion

Based on the foregoing, Petitioner Unifirst Corporation's Petition to Confirm Arbitration Award is continued to 09/14/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/24/2026, Petitioner is to file a proof of service of the Petition and Notice of New Hearing Date in a manner that complies with the requirements of Code of Civil Procedure section 1290.4. Failure to do so may result in the Petition being denied.

Petitioner is to give notice.